

Opinion of the Court

But even supposing (without granting) that Louisiana is right and it's dicta all the way down, why would the Court now walk away from many of its own statements about the Constitution's meaning? And what about the prior 400 years of English and American cases requiring unanimity—should we dismiss all those as dicta too?

Sensibly, Louisiana doesn't dispute that the common law required unanimity. Instead, it argues that the drafting history of the Sixth Amendment reveals an intent by the framers to leave this particular feature behind. The State points to the fact that Madison's proposal for the Sixth Amendment originally read: "The trial of all crimes . . . shall be by an impartial jury of freeholders of the vicinage, with the requisite of unanimity for conviction, of the right of challenge, and other accustomed requisites. . . ." ³⁹ Louisiana notes that the House of Representatives approved this text with minor modifications. Yet, the State stresses, the Senate replaced "impartial jury of freeholders of the vicinage" with "impartial jury of the State and district wherein the crime shall have been committed" and also removed the explicit references to unanimity, the right of challenge, and "other accustomed requisites." In light of these revisions, Louisiana would have us infer an intent to abandon the common law's traditional unanimity requirement.

But this snippet of drafting history could just as easily support the opposite inference. Maybe the Senate deleted the language about unanimity, the right of challenge, and "other accustomed requisites" because all this was so plainly included in the promise of a "trial by an impartial jury" that Senators considered the language surplusage.

before the Court was whether, in the circumstances of the defendant's case, a trial by eight jurors in a Utah state court would violate the *Ex Post Facto* Clause. 170 U.S., at 351. The Sixth Amendment's unanimity requirement was unnecessary to the outcome, and the Utah Constitution required unanimity either way. *Id.*, at 345.

³⁹ 1 Annals of Cong. 435 (1789).